Kinderloop Privacy Policy

October 2026

1. Kinderloop Asia Pacific Pty Ltd ACN 165 394 669 ("**KAP**", "us", "we", or "our") operates Kinderloop mobile applications "Kinderloop" and "Kinderloop Plus" (the **App/Apps**) and the website http://kinderloop.com (**Our Website**), together the **Products**.
2. The Product enables a registered childcare centre (**Centre**) and its staff, consultants, directors, advisors and representatives (**Educators**) to communicate with a child's parents, guardians and other family members approved by any parent or guardian (**Family Members**), regarding the child's activities.
3. All communication between a Centre and Family Members using the Products is via a personal electronic communication loop (a **Kinderloop**).
4. We provide this Privacy Policy to each person using any Product ("you" or "your").
5. We recognise the importance of protecting your privacy and the privacy of your child. We appreciate your trust and take this responsibility seriously.
6. We adhere to the Australian Privacy Principles contained in the Privacy Act 1988 (Cth) and to the extent applicable, the European Union's General Data Protection Regulation (**GDPR**).

Acceptance of Privacy Policy

7. By accepting this Privacy Policy you agree to these terms and conditions absolutely in their entirety.

Your Personal Information

8. This document informs you of our policies regarding our collection, use and disclosure of "**Personal Information**" we may receive from you when a profile is set up for your child, you create your Account, and/or use the Products. Personal Information is information which is identifiable as being about you, such as your first name and surname, your email address, your username, your password, the name of your child's early childhood centre and your mobile phone number.

Child Personal Information

9. The purpose of the Products is to keep parents, guardians and other family members informed of a child's activities within a registered childcare centre. We handle personal information regarding children under the age of 15 ("**child**" or "**children**").
10. We collect Personal Information that requires verifiable parental/guardian consent under national legislation in multiple jurisdictions including (in Australia) the Privacy Act 1988 (Cth) and (in the USA) the Children's Online Privacy Protection Act 15 U.S.C. §§ 6501–6506 (collectively, "**Child Personal Information**"). Child Personal Information includes for example, name, birthdate, voice, photographic images, video recordings, sound recordings, reports, documents, commentary, and the location of a child.
11. We use Child Personal Information to provide and improve the Products.
12. We use and share Child Personal Information only as described in this Privacy Policy and the Terms of Use available on our Website.

Why we collect Personal Information

13. We collect Personal Information and Child Personal Information to enable us to conduct the business of KAP.
14. We do not provide Accounts for use by children.
15. We provide Accounts for use by adults including parents/guardians, other approved family members, Centres and Educators. You must not provide us with your Personal Information and Child Personal Information if you are under the age of 18 without the consent of your parent or someone who has parental authority for you.
16. We do not collect Personal Information from children under the age of 13 without the consent of the child's parent or guardian.
17. We collect Child Personal Information from parents/guardians and from Centres with the express permission of the parent/guardian, and use it solely for business purposes connected with providing the Products.
18. We do not collect, use, or disclose any Child Personal Information without permission from the child's parents/guardians. That permission may come to us directly (through acceptance of our terms of use) or indirectly (each Centre warrants to us that they have obtained relevant express parental/guardian consent).

KAP use of Personal Information and Child Personal Information

19. A Centre will provide certain Child Personal Information to us when creating a profile about your child (Child Profile).

20. You will provide us with certain Personal Information to create your account (Your Account) in order to use the Products.

Centre use of Personal Information and Child Personal Information

21. You provide your Personal Information and Child Personal Information to the Centre, and the Centre use that information for the following purposes:

(a) creating a Child Profile which must then be activated by the child's parent or guardian;

(b) enabling parents, guardians and other family members to access the Child Profile;

(c) creating and uploading certain content (Content), including:

i. digital recordings of the child including video and sound recordings, photographic images of the child and/or their artistic works, alone and together with other children , Educators, and/or other persons (Child Recordings);

ii. reports, documents and comments concerning your child and their activities;

iii. information about group activities;

iv. Centre information; and

v. Other material,

to the Child Profile, and/or profiles of other children at the Centre (which are accessible by the parents, guardians and certain family members of those other children).

(d) storing, accessing and updating records held by the Centre; and

(e) creating and maintaining records for accreditation purposes.

Processing and storing your Personal Information and Child Personal Information

22. Kinderloop uses Amazon Web Services for platform hosting and storage. Sections 38 and 58A explain where information is stored and which other providers we use. Information is encrypted when it is sent.

Automatic Information

23. We receive and store certain types of information whenever you interact with us and we obtain certain types of information when your web browser accesses Products as described below.

24. When you come to Our Website, we may collect certain information such as browser type, operating system, website visited immediately before coming to our site, etc. This information is used in an aggregated manner to analyse how people use Our Website, such that we can improve our service.

25. We may use cookies on our website. Cookies are very small files which a website uses to identify you when you come back to the site and to store details about your use of the site. Cookies are not malicious programs that access or damage your computer. Most web browsers automatically accept cookies but you can choose to reject cookies by changing your browser settings. However, this may prevent you from taking full advantage of our website. Our Website may from time to time use cookies to analyse website traffic and help us provide a better website visitor experience.

Why we collect your Personal Information and Child Personal Information

26. We may use your Personal Information and Child Personal Information to enable us to do certain things such as:

(a) support the Child Profile to enable you to access a Kinderloop;

(b) manage, research and develop Products;

(c) provide you with information regarding Products;

(d) investigate any complaints.

(e) administer our business activities as described in paragraph 27 below;

(f) communicate with you;

(g) comply with legal obligations as described in paragraph 30 below; and

(h) transfer assets under a sale of business described in paragraph 31 below.

Third Party Service Providers

27. We may engage other persons not connected with KAP (Third Parties) to help us run our business, with database storage and content delivery, improve the Products, provide the Products on our behalf, perform related services and assist us in analysing how our Products are used.

28. We may disclose your Personal Information and Child Personal Information to Third Parties for the purpose of enabling them to perform the tasks described in paragraph 27 above on our behalf, and they will be obligated not to disclose or use your Personal Information or Child Personal Information for any purpose other than as described in paragraph 27 above.

Communications

29. We may use your Personal Information to contact you with information that we believe may be of interest to you such as new developments and additional features available in the Products. You will receive push notifications when using the App and/or an email notification at your registered email address alerting you and family members to new Content uploaded to a Kinderloop. You may opt out of receiving any, or all, of these communications from us by following the unsubscribe link or changing your settings in the App.

Compliance With Laws

30. We will disclose your Personal Information and Child Personal Information where required to do so by law such as by subpoena or warrant, legal proceedings or in response to a law enforcement agency request (including in relation to child protection issues and/or confirmation of identity of users).

Business Transaction

31. In the event that we sell or buy businesses or their assets, or engage in transfers, acquisitions, mergers, restructurings, changes of control and other similar transactions, customer or user information is generally one of the transferable business assets. Thus, your Personal Information and Child Personal Information may be subject to such a transfer.

Insolvency

32. In the unlikely event of insolvency, we may transfer your Personal Information and Child Personal Information to an agent, liquidator, trustee or debtor in possession and/or then to any subsequent purchaser.

Security

33. The security of your Personal Information and Child Personal Information is important to us, but no method of transmission over the Internet, or method of electronic storage is 100% secure. While we strive to use commercially acceptable means to protect your Personal Information and Child Personal Information, we cannot guarantee its absolute security.

General Data Protection Regulation (GDPR) for the European Union (EU)

34. We comply with the principles of data protection set out in the GDPR for the purpose of fairness, transparency and lawful data collection and use.

35. We will only collect your Personal information and Child Personal Information with your express consent for a specific purpose and any data collected will be to the extent necessary and not excessive for its purpose. We will keep your data safe and secure.

36. We may use your Personal information and Child Personal Information if it is necessary to protect your life or in a medical situation, it is necessary to carry out a public function, a task of public interest or if the function has a clear basis in law.

37. We do not collect or process any personal information from you that is considered "Sensitive Personal Information" under the GDPR, such as personal information relating to your sexual orientation or ethnic origin unless we have obtained your explicit consent, or if it is being collected subject to and in accordance with the GDPR.

38. **Where your information is stored**

(a) Kinderloop stores Personal Information and Child Personal Information in Amazon Web Services data centres in Sydney, Australia, including our backups. This applies to every Centre, wherever it is located, so information from Centres outside Australia is transferred to Australia.

(b) Children's records, photos and videos are stored on Kinderloop's platform in Sydney. This includes every video uploaded the usual way.

(c) Long video option: Educators can choose to upload a longer video using the optional long video option. Only videos uploaded this way are stored by Cloudflare Stream in the United States, and they are automatically deleted after 60 days.

(d) Some information is also processed by the following service providers, which help us run Kinderloop:

(i) SendGrid: email addresses and the content of notification emails, to send notifications;

(ii) Intercom: Centre contact details and support messages, to provide customer support;

(iii) Stripe: payment and billing information, to process payments;

(iv) Xero: billing contacts and invoices, for accounting;

(v) Apple and Google: device identifiers (push tokens), to send app notifications;

(vi) OpenAI: the text an Educator writes when using Kinderloop Magic, if the Centre has turned it on;

(vii) Cloudflare Stream: videos uploaded using the optional long video option, deleted after 30 days.

These providers may be located outside Australia, including in the United States. Section 58A gives more detail.

(e) We will give affected Centres at least 90 days' notice before we move customer information or infrastructure to a new country, or allow it to be accessed from a new country.

39. Amazon:

(a) maintains physical, electronic and procedural safeguards in connection with the collection, storage and disclosure of Personal Information and Child Personal Information;

(b) devices offer security features to protect against unauthorised access and loss of data; and

(c) keeps Personal Information / Child Personal Information to enable continued use of Amazon Services, for as long as it is required in order to fulfil the relevant purposes as may be required by law such as for tax and accounting purposes.

Your rights under the GDPR

40. If you are an individual residing in the EU, you have certain rights as to how your Personal information and Child Personal Information is obtained and used. We comply with our obligations under the GDPR as to how your Personal information and Child Personal Information is used and controlled if you are an individual residing in the EU

41. Except as otherwise provided in the GDPR, you have the following rights:

(a) to be informed how your Personal information and Child Personal Information is being used;

(b) access your Personal information and Child Personal Information (we will provide you with a free copy of it);

(c) to correct your Personal information and Child Personal Information if it is inaccurate or incomplete;

(d) to delete your Personal information and Child Personal Information (also known as "the right to be forgotten");

(e) to restrict processing of your Personal information and Child Personal Information;

(f) to retain and reuse your Personal information and Child Personal Information for your own purposes;

(g) to object to your Personal information and Child Personal Information being used; and

(h) to object against automated decision making and profiling.

42. Please contact us at any time to exercise your rights under the GDPR at the contact details in this Privacy Policy.

43. We may ask you to verify your identity before acting on any of your requests.

Access and Correction of Personal Information and Child Information

44. At any time, you may access and correct, any Personal Information and/or Child Personal Information we hold about you or your Child, including requesting us to delete your Personal Information or Child Personal Information. If you would like to obtain such access, please send an email to privacy@kinderloop.com.

45. Please note that the access and correction requirements under this Privacy Policy operate alongside and do not replace other informal or legal procedures by which an individual can be provided access to, or correction of, their Personal Information.

Complaints

46. You may make a complaint to us at any time if you are concerned about any use or misuse of your privacy associated with your use of any Product.

47. In order to lodge a complaint with us, please contact us using the details above with the following information: your name and address, details of the alleged breach of privacy and the URL link to the alleged breach of privacy (if applicable).

48. Please allow us thirty (30) days to investigate your complaint, after which we will contact you to resolve the issue.

Retention of Information - How images and videos of children are taken, used, stored, and destroyed

49. We securely retain information in line with the National Regulations. We may dispose of Personal Information at our discretion without notice, subject to applicable law that specifically requires the handling or retention of information.

Links To Other Sites

50. Products may contain links to other sites that are not operated by us. If you click on a third party link, you will be directed to that third party's site. We strongly advise you to review the Privacy Policy of every site you visit.

51. We have no control over, and assume no responsibility for the content, privacy policies or practices of any third party sites or services.

Changes To This Privacy Policy

52. We may update this Privacy Policy from time to time. When we do, we will post the updated policy on Our Website and let you know through an announcement in the Kinderloop app (the bullhorn).

53. You must review Our Website periodically for any changes to this Privacy Policy. Changes to this Privacy Policy are immediately effective when they are posted on Our Website.

54. If we make a material change, we will tell you through a bullhorn announcement in the app and may also email you or place a notice on Our Website.

Consent

55. You warrant that you are able to give consent or in the event that you do not have the capacity to give consent, you warrant that your guardian or attorney is able to give any consent required under this Privacy Policy on your behalf.

56. You hereby expressly and voluntarily grant your informed consent to us to deal with your Personal Information in accordance with the terms and conditions of this Privacy Policy.

57. This Privacy Policy shall be governed by the Privacy Act 1988 (Cth), laws of the New South Wales and the Commonwealth of Australia and the parties hereby submit to the non-exclusive jurisdiction of the Courts of New South Wales.

AI

58. Kinderloop Magic is an optional AI writing tool that a Centre may turn on for its Educators. When an Educator uses it, only the text they have written is sent to OpenAI OpCo, LLC, a US company, to suggest improvements. No title, profile details, photos or videos are sent. The text is sent exactly as written, so any names or personal information the Educator types will be sent too.
OpenAI may keep the text for up to 30 days to check for misuse, and longer where required by law or in limited other circumstances set out in OpenAI's terms. Our OpenAI account is not limited to one country, so the text may be processed in the United States or elsewhere. OpenAI does not use content sent through its API to train its models unless the customer chooses to share it, and Kinderloop has not chosen to share content with OpenAI.
Educators should leave out unnecessary personal details and check every suggestion before using it.
Kinderloop accepts no responsibility for any losses or damages occurred by use of this feature; it is intended as an aid to assist staff when writing posts within Kinderloop.

58A. Our service providers. We use these providers to run Kinderloop:

Provider	What for	What they receive	Where	Privacy info
Amazon Web Services	Hosting and backups	Platform records, photos, videos (except long-video uploads) and documents	Australia (Sydney)	aws.amazon.com/privacy
OpenAI OpCo, LLC	Kinderloop Magic	Text educators write, including any names typed	United States and other countries	openai.com/policies/privacy-policy

Provider	What for	What they receive	Where	Privacy info
Twilio SendGrid	Notification emails	Email addresses and email content	United States	twilio.com/legal/privacy
Intercom	Customer support	Centre contact details and support messages	United States	intercom.com/legal/privacy
Cloudflare Stream	Long video option	Long-option videos, which may show children; deleted after 30 days	United States (stored); delivered globally	cloudflare.com/privacypolicy
Stripe	Payments	Payment and billing information (card details handled only by Stripe)	United States and other countries	stripe.com/privacy
Xero	Accounting	Billing contacts and invoices	United States	xero.com/legal/privacy
Apple and Google	App stores and push notifications	Device push tokens	Global	apple.com/legal/privacy; policies.google.com/privacy

If you have any questions about this Privacy Policy, please send an email to – privacy@kinderloop.com

Kinderloop Terms of Use 2026

Important Information

1. Kinderloop Asia Pacific Pty Ltd ACN 165 394 669 ("**KAP**", "us", "we", or "our") operates Kinderloop mobile applications "Kinderloop" and "Kinderloop Plus" (the **App/Apps**) and the website http://kinderloop.com (**Our Website**), together the **Products**.
2. The Product enables a registered childcare centre (**Centre**) and its staff, consultants, directors, advisors and representatives (**Educators**) to communicate with a child's parents, guardians and other family members approved by any parent or guardian (**Family Members**), regarding the child's activities.
3. All communication between a Centre and Family Members using the Products is via a private electronic communication loop (a **Kinderloop**).
4. A Kinderloop may be a Primary Kinderloop (involving only a child's Family Members, the Centre and Educators), or it may be a Secondary Kinderloop (involving a child's Family Members, the Family Members of other children at the Centre, the Centre and Educators), subject to these Terms.
5. The Products may only be used for the purposes of communication between a Centre and Family Members of children at that centre and/or to assist the Centre to maintain records for accreditation and other legal purposes (the **Permitted Purpose**).
6. You agree to use the Products solely for the Permitted Purpose.
7. You can access your Kinderloops via the Products.

Acceptance of Terms

8. Please read these Terms carefully. You signify that you have read, understood and agree to be bound by these Terms by (a) using, browsing and/or reading Our Website; or (b) accepting these Terms by clicking to accept the Terms where this option is made available to you. These Terms continue in force until we terminate them.
9. Your access to and use of any Product is conditional on your acceptance of, and compliance with, these Terms.
10. If there is any conflict between any representation made by us and these Terms, these Terms shall prevail.

Creating a Kinderloop Account

11. You must create a KAP account (**Account**) to use the Products, and must provide us information that is accurate, complete, and current to the best of your knowledge. You may do this by clicking on the email link we send you.
12. You are responsible for safeguarding the password for your Account and for any and all activities on your Account and/or under your password. You must not disclose your username or password to anyone and notify us immediately upon becoming aware of any breach of security or unauthorised use of your Account.

Terms for Parents/Guardians

13. Paragraphs 14 to 21 below apply to parents and guardians.
14. You acknowledge and agree (for each of your children attending a Centre), that the Centre will use your personal information and your child's personal information to create a profile about your child (**Child Profile**) which will be accessible by you and others, including:

(a) the Centre and its Educators;

(b) you, and any other parent or guardian of your child;

(c) any Family Members approved by you, or by another parent or guardian; and

(d) us, our staff, consultants, directors, advisors, and representatives.

15. As a parent or guardian you permit the Centre and Educators to take digital recordings of your child, including video and sound recording and photographic images of your child and/or their artistic works, alone and together with other children, Educators and/or other persons (**Child Recordings**), and to use those recordings in the Products for the Permitted Purpose, subject to these Terms. You authorise the Centre, its Educators and us to share Child Recordings with you and others pursuant to these Terms.

16. The Centre may upload certain content to a Kinderloop, including the following (Content):

(a) Child Recordings;

(b) reports, documents and comments concerning your child and their activities;

(c) information about group activities;

(d) Centre information; and

(e) other material.

17. Parents/Guardians and Family Members may use the Products to access Content and add to the Content of that Kinderloop by providing commentary.

18. You agree that Content relating to your Child may be uploaded to a Primary Kinderloop and/or a Secondary Kinderloop. You hereby agree and consent for Content to be shared with Family Members, and the Family Members of other children at the Centre in this manner.

19. If you have any child welfare concerns regarding paragraph 14(c), 18 or any other paragraph of these Terms, you must immediately contact your Centre in writing.

20. A parent or guardian must:

(a) only accept an invitation to open, activate or authorise your Child Profile relating to a Centre known to you and your child;

(b) reject and immediately report to us any invitation to open a Child Profile that does not relate to a Centre known to you and your child; and

(c) reject and immediately report to us any invitation to any other Child Profile.

21. As a parent or guardian, you warrant:

(a) you are the parent or legal guardian of each and every child the subject of any Child Profile you activate, authorise or access; and

(b) you understand a child is a vulnerable person and you agree to any and all Content uploaded to a Kinderloop involving you.

Terms for Centre & Educators

22. The Centre agrees that its Educators use the Products as agents of the Centre. The Centre is responsible for and liable for the conduct of each Educator in their use of the Products at all times, including any breach of these Terms. The Centre releases and forever indemnifies us for any breach of these Terms by it and/or its Educators.

23. The Centre, and each Educator agrees:

(a) they will carefully monitor and supervise Content at all times;

(b) (except as required by law) they will not permit or enable any person other than the Centre, Educator and a child's Family Members to access a Child Profile; and

(c) (except as required by law) they will not permit or enable any person other than the Centre, Educator and authorised Family Members to access any Kinderloop..

24. As a Centre or Educator, you warrant:

(a) you have all necessary authorities and express consents to create each Child Profile and use the Products for each child pursuant to these Terms, including express parent/guardian consents relating to the collection, use, and storage (by you and us) of personal information of that child; and

(b) you will at all times:

(i) be conscious of your duties of care to each child when uploading Content to the Child Profile;

(ii) demonstrate the highest standards of professional behaviour, exercise professional judgement and act in a courteous and sensitive manner when interacting with us and with Family Members;

(iii) be familiar with and comply with at all times all legislative and industrial requirements and any professional responsibilities, codes of conduct, policies and procedures applicable to you as an Educator;

(iv) use information gained in the course of your use of the Products only for the Permitted Purposes; and

(v) except in the discharge of official duties, use no information gained by you or conveyed to you in the course of your use of the Products.

25. Where the Centre is not a corporate person, the Centre warrants that it is authorised to accept these terms on behalf of its owner(s), and does so with their/its express permission and authority.

26. As an Educator, you also warrant you accept these Terms with the express permission and authority of the Centre.

Fee

27. The App is free to download on your device.

28. Subject to your compliance with these Terms, we grant you a limited, fixed term, non-exclusive, non-assignable, non-transferrable licence to use the Products.

29. You agree to pay a Licence Fee on a subscription basis being a non-refundable payment due monthly, six monthly or annually that will automatically renew until Your Account is suspended. If you wish to suspend Your Account, you will notify us in writing one month before your archive date. Information regarding the Licence Fee is available on Our Website. We will notify you if the Licence Fee changes.

30. The License Fee may differ from one country to another, and from one user to another.

31. Electronic card payments are not processed through pages controlled by us. We use one or more online payment service providers who encrypt your card or bank account details.

Bad Behaviour

32. We take child wellbeing, welfare and safety seriously and will not tolerate bad behaviour associated with the use of any Product, including behaviour which is (in our view in our absolute discretion) rude, vulgar, inappropriate, discriminatory, disrespectful, sexualised, illegal, discriminatory, violent, abusive or bullying, and any other behaviour that we dislike (Bad Behaviour).

33. You must not engage in Bad Behaviour or use Your Account to request any personal information from any other person, which will also be deemed as Bad Behaviour.

34. You must immediately report any Bad Behaviour to the Centre your child attends.

35. We do not monitor Content but we will investigate any Bad Behaviour reported to us. If we form the view that you have engaged in Bad Behaviour, we will immediately delete any offending material from Your Account without notice to you.

36. We may:

(a) shut down Your Account without notice to you and without any pro-rata refund of any Licence Fee received; and/or

(b) report Bad Behaviour to relevant law enforcement authorities or government agencies, at our absolute discretion.

Your use of the Products

37. You must not under any circumstances:

(a) copy, reproduce, publish, or share with any third person through any means, any Content whatsoever (including sharing by email, uploading, reducing to hard copy, or sharing on any social media platform or any other electronic source);

(b) use the Products in any way that may or will:

(i) compromise the health, welfare or safety of any child;

(ii) infringe any other person's intellectual property rights;

(iii) violate our rights under law in any way (including infringing our intellectual property rights); or

(iv) be inconsistent with these Terms;

(c) use Products or the Content for any purpose other than purposes relating to the subject child's education and development.

(d) adapt, reverse engineer, decompile, disassemble, reproduce, store, distribute, display, perform, publish or create derivative works from, any part of Products; and/or

(e) remove any identification, reference number, logo or other KAP information which may be embedded in any file associated with any Product on your device.

38. We reserve the right to modify, or remove any Content from Your Account and/or your contribution to any Kinderloop at any time for any reason, without notice to you.

Intellectual Property Rights

39. KAP does not claim any intellectual property rights in any Content.

40. KAP maintains all intellectual property rights in the Products.

41. You here grant to us a perpetual, royalty free, non-exclusive licence to use your intellectual property in the Content for the Permitted Purposes.

42. You agree that you will notify us of any suspected infringement of KAP intellectual property rights.

Third party websites

43. Products may contain links to third-party websites or services that are not owned or controlled by us, including advertisements for services offered by that third party. The inclusion of a link to external websites do not imply our endorsement of those websites. We have no control over, and assume no responsibility for, the content, privacy policies, or practices of any of those third party web sites or services and you acknowledge and agree that when you access them, you do so at your own risk. You release us from any liability in respect of links to third-party websites or services that are not owned or controlled by us.

Limitation of liability

44. All implied conditions, warranties and terms are excluded from these Terms.

45. We make no representation or warranty that the Products:

(a) will be useful to you; meet your requirements; of satisfactory quality; free from error, defect, virus or any other harmful component; fit for any particular purpose; or available or accessible, without interruption or without error; or

(b) will function uninterrupted, or be available at any particular time or location.

46. You agree that:

(a) we shall not be liable for any damages suffered as a direct or indirect result of your use of the Products; and

(b) subject to (a), if in any circumstances we become liable to you, the limit of our liability is the pro-rata amount you paid for the Licence Fee.

47. Paragraphs 44 to 46 any other paragraph which excludes or restricts our liability applies to our directors, officers, employees, subcontractors, agents and affiliated companies as well as to us.

48. If you become aware of any breach of any term of these Terms by any person, please tell us by email including a subject title marked URGENT. We welcome your input but do not guarantee that we will agree with your judgement.

You indemnify us

49. As a condition of your access to and use of Products, you agree to indemnify us, our directors, officers, agents, employees and contractors and our successors and assigns, against all loss, actions, proceedings, damages, costs, and expenses (including legal fees) and claims arising directly or indirectly from:

(a) your breach of these Terms;

(b) any activity on Your Account or under your password; and

o your access to the Products.

50. Paragraph 49 survives termination of these Terms, and applies to claims arising both before and after such expiration or termination.

Privacy

51. We recognise the importance of protecting your privacy. Our Privacy Policy detailing our policies regarding the collection, use and disclosure of your personal information is available on Our Website, and you agree to be bound by it.

Termination

52. We may terminate or suspend Your Account and terminate any license described in the Terms immediately, without notice or liability, for any reason whatsoever at our absolute discretion. We will do so if you breach these Terms.

53. Upon termination or suspension, your rights to use any Product will immediately cease and we or the Centre will archive and store all Content for at least the period required by law.

54. If you wish to suspend Your Account, you may:

(a) discontinue using the Products; or

(b) inform the Centre that you wish to suspend your Child Profile.

55. Any Term which by its nature should survive termination shall survive termination, including, without limitation provisions relating to ownership, intellectual property, warranties, disclaimers, indemnities and limitations of liability.

56. We shall not be liable to you or any third party for any claim or damages arising out of any termination or suspension or any other actions taken by us.

57. If applicable law requires us to provide notice of termination or cancellation, we may give prior or subsequent notice by posting it on Products or by sending a communication to any address (email or otherwise) that we have for you in our records.

58. We do not, under any circumstances, offer refunds in the event of suspension or termination.

59. If closing account with us, access can be granted to the admin level user on the following terms, 12 hrs free, 1 week $20(+GST), or;
option 1) do nothing, data remains as is for a minimum of 3 years, then deleted;
option 2) do nothing, but if access required then see above costs
option 3) download posts, accidents and daily activity (i.e. not custom planning or medication). For services with less than 2,000 posts there is a small charge for this, then $10 per 1,000 posts above this. That data is then deleted from the system.

Automated Access, APIs and Reverse Engineering

You must not, without our prior express written permission:

(a) access, use, query or interact with any application programming interface, endpoint, protocol, service or other underlying technical interface used by or forming part of the Products (API), other than through the normal functionality and user interfaces made available by us;

(b) use any automated means, including any bot, robot, crawler, spider, scraper, script, automated agent or other software, process or device, to access, query, monitor, extract, copy, download, collect, harvest or otherwise obtain any data, Content or information from the Products or any API;

(c) reverse engineer, decompile, disassemble, analyse, probe, discover, derive or attempt to discover or derive the structure, operation, source code, object code, protocols, authentication mechanisms, API endpoints, requests, responses or other underlying functionality of the Products or any API;

(d) use, reproduce or imitate any API, endpoint, request, authentication credential, token, session information or other technical mechanism used by the Products for the purpose of accessing the Products or obtaining data or Content outside the normal functionality provided by us;

(e) circumvent or attempt to circumvent any access control, authentication mechanism, rate limit, technical restriction or security measure applying to the Products or any API; or

(f) use any data or Content obtained from the Products or any API through scraping, data mining, automated extraction or other programmatic means.

For the avoidance of doubt, access to the Products through an Account does not grant you any right or licence to directly access or use any API or other underlying technical interface, except where such access has been expressly authorised by us in writing.

To help protect the security, privacy and integrity of the Products and the data held within them, we may monitor access to and use of the Products, including access patterns and technical activity. Where we reasonably believe that activity may be unauthorised, automated, abusive, insecure or otherwise in breach of these Terms, we may temporarily restrict, suspend or block that access while the activity is investigated or appropriate protective measures are taken. These measures are intended to protect users, children, Centres and their data from unauthorised access, misuse or security risks.

Miscellaneous matters

60. You will give any required notice under these Terms to us by sending an email to legal@kinderloop.com.

61. If any part of these Terms is at any time held by any jurisdiction to be void, invalid or unenforceable, then it shall be treated as changed or reduced, only to the extent necessary to bring it within the laws of that jurisdiction and to prevent it from being void, and shall be binding in that changed or reduced form.

62. Our rights and obligations set out in these Terms shall pass to any permitted successor in title.

63. Any obligation in these Terms intended to continue to have effect after termination shall so continue.

64. We will communicate with you by e-mail or by posting notices on Our Website. You agree that all such electronic communications satisfy any legal requirement that such communications be in writing.

65. Any communication emailed to you will be deemed as having been received within 24 hours if no notice of non-receipt has been received by the sender.

66. These Terms do not give any right to any third party.

67. These Terms shall be governed by laws of the State of New South Wales and the Commonwealth of Australia and the parties hereby submit to the non-exclusive jurisdiction of the Courts of New South Wales.